

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

October 12, 2020

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:06 p.m. via electronic conference meeting. Attending electronic conference meeting were: MAYOR – Marian J. Orr (joining meeting at 6:08 p.m.); COUNCIL MEMBERS – Rocky Case, Bryan Cook, Ken Esquibel, Pete Laybourn, Mike Luna, Dr. Mark Rinne, Scott Roybal, Dicky Shanor and Jeff White. Also attending: Kris Jones, City Clerk. [Clerk’s note: Due to technical difficulties, Dr. Rinne, Council President, Chaired agenda items 1 through 5, relinquishing duties to Mayor Orr at 6:08 p.m. during discussion of agenda item 6.]

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Mr. Roybal moved to approve, seconded by Mr. Luna. Motion carried. Voting “yes” – all members of the governing body present with the exception of Mr. Laybourn voting “no”.

[CA] Minutes from Regular Meeting of the Governing Body on September 28, 2020. Motion (per Consent Agenda) carried.

ORDINANCE – 3rd READING – Amending the Unified Development Code of the City of Cheyenne, Wyoming to create the Support Services Zone District and establishing design criteria. Reporting for Public Services Committee, Mr. Case moved to approve on third and final reading, seconded by Mr. Roybal. Motion carried. Voting “yes” – all members of the governing body. (#4326)

ORDINANCE – 2nd READING – Amending Chapter 10.44, Weight Limits, of Title 10, Vehicles and Traffic, of the Municipal Code of the City of Cheyenne, Wyoming. Mr. Case moved to approve on second reading, seconded by Mr. Cook. It was noted that Police Chief Brian Kozak had contacted local trucking companies and had received a response. Based on the response he would like to postpone the ordinance for further review. Dr. Rinne moved to postpone to October 26, 2020, seconded by Mr. Luna. Motion to postpone carried. Voting “yes” – all members of the governing body.

ORDINANCE – 2nd READING – Amending Chapter 5.04, Business Licenses Generally, amending Chapter 5.08, Business License Fees, and creating a new Chapter 5.77, Nicotine Product Sales, of Title 5, Business Licenses and Regulations; amending Chapter 8.64, Smoking in Public Places, of Title 8, Health and Safety; and amending Chapter 9.16, Offenses By or Against Minors, of Title 9, Public Peace and Welfare, of the Municipal Code of the City of Cheyenne, Wyoming. Nicholas Vaughn commented in support of the ordinance and stated he works in education and has

seen a rise in tobacco use in youth. He believes enforcing the purchase age of 21+ can help deter addiction to nicotine at a young age. Brittany Wardle, Cheyenne Regional Medical Center, advised the ordinance change aligns with federal and state laws and effective tobacco retail licensing prevents illegal tobacco sales. She added that an effective licensing system includes fees, the option to suspend/ revoke a license and the ordinance changes allow for local enforcement and will help curb nicotine addiction in the community. Mr. Case advised there was no recommendation from Public Services Committee. Mr. Case moved to approve on second reading, seconded by Mr. Roybal. Mr. White moved to amend page 2, section 2, in the second paragraph by striking the “one hundred twenty-five dollars” license fee and replacing with “sixty-five dollars” and making the same change to the numerical portion in parenthesis, seconded by Mr. Case. Mr. White advised the fee reduction is to alleviate cost increase concerns, noting it will keep the cost the same as it currently is. Opposition to the amendment was voiced noting the increase is equivalent to \$5.00 a month. Comments were made related to the effects of nicotine addiction and the affiliated costs to society. Mayor Orr advised, upon inquiry, the City does not fund research. Mr. White reported the cost increase was proposed and intended to help with expenses associated with compliance checks performed by the Police Department. Robin Lockman, City Treasurer, upon inquiry, advised that currently the fees for tobacco licenses go into the general fund, however, the Governing Body can request the Treasurer’s Office to appropriate the revenue annually to the Police Department. Discussion continued on poor timing of increasing regulatory fines on small businesses, ordinance changes creating an additional layer of administrative fees and compliance with state and federal laws. Motion to amend carried. Voting “yes” – all members of the governing body with the exception of Mr. Esquibel, Mr. Laybourn, Mayor Orr and Dr. Rinne voting “no”. Main motion as amended carried. Voting “yes” – all members of the governing body with the exception of Mr. Luna, Mayor Orr and Mr. Shanor voting “no”.

ORDINANCE –1st READING – Amending Section 8.56.070, Loudspeakers, Sound Cars, and Sound Trucks, of Chapter 8.56, Noise Control, of Title 8, Health and Safety, of the Municipal Code of the City of Cheyenne, Wyoming – referred to Public Services Committee. (Sponsor – Mr. Case)

ORDINANCE –1st READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from HR (High-Density Residential) to CB (Community Business) for property generally located east of Interstate 25 and north of Central Avenue adjacent to Hynds Boulevard – referred to Public Services Committee. (Sponsor – Mr. Case)

ORDINANCE –1st READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification of Lot 1, Block 2 and Lot 1, Block 3, Back 40 Subdivision Second Filing from MUB (Mixed-Use Business Emphasis) to CB (Community Business) for property generally located north of West Lincolnway at Grant Avenue – referred to Public Services Committee. (Sponsor – Mr. Case)

ORDINANCE –1st READING – Vacating the entirety of the Stinson Avenue right-of-way lying between Blocks 404 and 410, Original City, Cheyenne, Laramie County, Wyoming and south of West Lincolnway Highway – referred to Public Services Committee. (Sponsors – Mr. Case, Mr. Cook, Mr. Esquibel, Mr. Laybourn, Dr. Rinne, Mr. Roybal and Mr. White)

ORDINANCE –1st READING – Amending the Unified Development Code (UDC) to define, establish permissibility, and create Specific Use Standards for the use ‘Emergency Shelter’ – referred to Public Services Committee. (Sponsors – Mr. Case, Mr. Cook, Mr. Esquibel, Mr. Laybourn, Dr. Rinne, Mr. Roybal and Mr. White)

[CA] RESOLUTION – Amending Resolution #6058, the City of Cheyenne Comprehensive Consolidated Plan 2020-2024 and 2020 Annual Action Plan, prepared by the Cheyenne Housing and Community Development Office. Motion (per Consent Agenda) carried. (#6094)

[CA] RESOLUTION – Certifying the Whitney Road Corridor Plan. Motion (per Consent Agenda) carried. (#6095)

[CA] RESOLUTION – Authorizing the submittal of a request to the Wyoming State Loan and Investment Board to amend Drinking Water State Revolving Fund Loan #133 from \$4.9 million to \$7.4 million for the City of Cheyenne Hydroelectric Generation Facility Project and authorizing the Mayor, City Clerk, and the Director of the Board of Public Utilities to sign all loan documents – referred to Finance Committee. (Sponsor – Mr. Laybourn)

[CA] RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for Sweetgrass, 4th Filing, a replat of all of Block 1, (Lots 1 thru 8 inclusive), Sweetgrass, 3rd Filing, Cheyenne, Laramie County, Wyoming (located at the southeast corner of E. College Drive and Goodnight Trail) – referred to Public Services Committee. (Sponsor – Mr. Case)

[CA] RESOLUTION – Adopting an amendment to the Future Land Use Map in PlanCheyenne, the Master Plan for the City of Cheyenne and the Comprehensive Plan for portions of Laramie County, amending the Land Use Category for property generally located east of Interstate 25 and north of Central Avenue adjacent to Hynds Boulevard from Public/Quasi-Public to Community Business – referred to Public Services Committee. (Sponsor – Mr. Case)

[CA] RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for Cole School Addition, a replat of all of Block 569 & 570, Original City of Cheyenne, including the 16’ alley rights-of-way of said blocks; and portions of adjacent rights-of-way (O’Neil Ave., W. 8th St., Thomes Ave., & Bent Ave.); and all of Block 2, Roberts Place, including the 16’ alley right-of-way, Cheyenne, Laramie County, Wyoming (located at the southeast corner of the intersection of Bent Avenue and W. 9th Street – referred to Public Services Committee. (Sponsor – Mr. Case)

[CA] RESOLUTION – Creating a Special District for the DDA “Boos & Booze” Halloween Pub Crawl to be held on October 31, 2020, in which the possession of open containers is permitted within the Downtown District Boundaries – referred to Public Services Committee. (Sponsor – Mr. Case)

[CA] Agreement between the Wyoming Department of Transportation (WYDOT) and the City of Cheyenne Transit Program, to provide operating assistance in the amount of \$198,533.00 for Fiscal Year 2021 (Revenue to City). Motion (per Consent Agenda) carried (in an amount not to exceed \$198,533.00). (#7243)

[CA] Agreement between the Wyoming Department of Health, Aging Division, to provide support services to persons 60 years or older under the Title III-B Program Grant for Fiscal Year 2021 (Revenue to City). Motion (per Consent Agenda) carried (in an amount not to exceed \$72,456.00). (#7244)

[CA] A 0.008 Acre permanent and exclusive easement to construct, maintain, operate, remove, and replace a power line for the Christensen Road bridge and roadway lighting on property owned by Virginia Bowers within Laramie County, Wyoming (2017 Specific Purpose Option Tax). Motion (per Consent Agenda) carried. (#7245)

[CA] A 0.053 Acre permanent and exclusive easement to construct, maintain, operate, remove, and replace a power line for the Christensen Road bridge and roadway lighting on property owned by Kathy Julius within Laramie County, Wyoming (2017 Specific Purpose Option Tax). Motion (per Consent Agenda) carried. (#7246)

[CA] Agreement to fulfill City Contract No. 6949 between the City of Cheyenne and Summit Engineering, LLC for providing design services for five Greenway segments and 35% design services for segment #6 (Specific Purpose Sales Tax) – referred to Finance Committee.

[CA] Contract Modification #1 to Contract #7200 between the City of Cheyenne and JTL Group Inc. d/b/a/ Knife River for additional construction services and changes to retainage on the Allison Road and Cribbon Avenue Median Improvements Project (2019-2022 1% Sales Tax). Motion (per Consent Agenda) carried (in an amount not to exceed \$28,916.10). (#7200)

[CA] Contract Modification #1 to Professional Services Agreement #7003 between the City of Cheyenne on behalf of the Cheyenne Metropolitan Planning Organization and Kimley-Horn Associates, Inc., for the PlanCheyenne Update: 2019-2045 (MPO Federal Funding) – referred to Finance Committee.

[CA] Contract Modification #4 to Professional Services Agreement #6552 between the City of Cheyenne and HDR Engineering, Inc. for the Prairie Ave. & Frontier Mall Dr. Intersection Improvements Project (2019-2022 1% Sales Tax) – referred to Finance Committee.

[CA] Contract Modification #1 to Contract #7207 with Front Range Roofing Systems, LLC, for the roof replacement for Parks Shop and Fleet Maintenance (General Fund-Capitol Improvement Project) – referred to Finance Committee.

[CA] Consideration of Bid #E-4-21 for furnishing ten (10) portable litter fences for the City of Cheyenne Landfill (Solid Waste Fund) – referred to Finance Committee.

[CA] Consideration of Bid #E-6-21 for furnishing one (1) new 16' wide area mower for the City for Cheyenne Parks Division (2015-2018 1% Sales Tax) – referred to Finance Committee.

[CA] Consideration of Bid #E-2-21 for furnishing one (1) new 2020-2021 patch truck for the City of Cheyenne Street and Alley Department (2015-2018 1% Sales Tax) – referred to Finance Committee.

No comments were made on the Voucher Report as presented.

Other business:

Mr. Laybourn commented on conducting public business in a rushed manner.

There being no further business to come before the governing body, the meeting was officially adjourned at 6:36 p.m.

Submitted by,

Kristina F. Jones, City Clerk

This notice is available in alternative, accessible formats upon request.

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